

Standard Terms and Conditions

Following terms and conditions ("**Standard Terms and Conditions**") shall apply to the "**Windows Azure Trade-In Scheme**" detailed below (the "**Scheme**").

1. For the purposes of the Scheme, the term Microsoft, shall mean:
Microsoft Regional Sales Corporation, Singapore Branch.
2. "Scheme Period"; means [20th March, 2014] to [30th June, 2014] (both days inclusive). Microsoft reserves all rights to alter Scheme Period, as it deems necessary, without any prior notice to or approval from any party.
3. The Scheme shall be valid in India only.
4. "**Participant**"; means any Small and Medium Business category customer having PC count between 5 to 100, having business in India who obtains first time Azure subscription online from Microsoft during the Scheme Period and wants to participate in the Scheme.
5. **Trade In Scheme Registration Process:**
 - a) Participants must call Scheme Toll Free calling number 1 800 307 04660 or Log into www.microsoft.com/india/movetoazure site to register for their interest.
 - b) Upon registration, the Scheme Helpdesk will reach out to the Participant within 7 working days and:
 - I. Understand & **assess cloud solution requirements;**
 - II. Undertake demo of the Windows Azure product and Scheme features to Participant either on phone or through Lync call.
 - III. Helpdesk will obtain an email consent from Participant and will pass the lead to Microsoft Recycle Partner (Recycle Partner) for evaluating the existing hardware of the Participant and quote for the trade in of the hardware.
 - c) Recycle Partner will directly contact the Participant to estimate and may offer a **purchase price** for existing servers/hardware belonging to Participant. The trade-in of hardware may have VAT implications and/or attract other levies, eg octroi etc. It is between the Participant and Recycle Partner to ensure compliance with any tax laws, and Microsoft will not intervene or be held responsible for non-compliance by either party.
 - d) Participant's transactions with Recycle Partner will be on principal to principal basis, and Microsoft has no role in influencing the decision of the Recycle Partner to purchase existing hardware of the Participant, or the purchase price for the trade in. Any disputes between Recycle Partner and Participant must be resolved between the parties and Microsoft cannot be made party to the same.
 - e] Recycle Partner will pay the purchase consideration value directly to the Participant and will collect the existing hardware from the Participant. Participant agree to issue necessary gate passes, approvals and letters to Recycle Partner for ease in delivery of the traded-in hardware to the Recycle Partner.
 - f] Recycle Partner will issue an acknowledgment mentioning the details of hardware traded in by the Participant, and the trade-in price paid to the Participant. Participant agrees that Recycle Partner may share a copy of this acknowledgment letter to Microsoft, and/or to its designated agency.
 - g] This Scheme and Scheme Benefits are available only through the Microsoft identified Recycle Partners in India only.

- h]** Participant will call the Scheme Helpdesk to confirm receipt of the acknowledgement for the trade-in and activation of the Scheme benefits as described in the table below

Value of hardware traded-in, as per Acknowledgement issued by Recycle partner	Sign-up for Minimum commitment of Windows Azure for One Year for the following amounts (USD) to include Upfront payment	Additional Credit towards Windows Azure services	Overall Scheme Benefits for Participants
\$200-\$1000	\$3000	Not exceeding \$500 per month, against the billable subscription amount for first 2 months	\$4000 worth of Azure subscription for \$3000
\$1000-\$3000	\$10000	Not exceeding \$1000 per month, against the billable subscription amount for first 4 months	\$14000 worth of Azure subscription for \$10000
\$3000-\$5000	\$15000	Not exceeding \$1500 per month, against the billable subscription amount for first 4 months	\$21000 worth of Azure subscription for \$15000
\$5000-\$10000	\$25000	Not exceeding \$3000 per month, against the billable subscription amount for first 4 months	\$37000 worth of Azure subscription for \$25000

- Additional credits for Windows Azure Services offered as per Scheme Benefit will not be carried forward or adjusted beyond the initial duration specified above.
E.g. if billing in month 1 is \$400 and the credit amount (\$500) exceeds the billing, the customer would be charged nil, and the unutilized credit of \$100 will not carry forward to month 2 or beyond.
- Azure subscription has to be 12 month upfront payment commitment plan, and the Azure Trade-in credit only applies to the 1st subscription purchase in one account.
- Additional credits for Windows Azure Services would not be payable in cash, and would be available as an adjustment only against subscription billing for Azure Services, as per the table above. To further clarify, additional credits for Azure Services cannot be adjusted against subscription billing for Office 365, CRM Online or other online services direct by Microsoft to the Participant.
- Participant is required to create first time Windows Azure subscription with minimum commitment threshold as per above table to avail scheme benefit.

- v. Participation in this scheme is optional, and customers can continue to buy Azure from Microsoft without any Scheme benefits.
- vi. All queries related to the Scheme can be written to program cell movetoazure@machwan.com

Scheme General Terms and Conditions:

1. For calculation of Benefits, only the parent organization of a Participant would be considered. Purchase of Eligible Products by sister concerns would not be counted or eligible to be redeemed. The Participant shall not be eligible to obtain Benefits under the Scheme if the Participant has obtained or is eligible to obtain similar benefits under any other scheme pertaining to the Eligible Product.
2. Microsoft shall not be responsible for errors in online registrations.
3. Participation in the Scheme shall be construed as an acceptance of the Terms and Conditions stipulated herein. Any breach or default by a Participant of any of the Terms and Conditions herein shall result in immediate disqualification without notice.
4. The Participant undertakes and declares that, it does not use or sell any unauthorized or pirated Microsoft software. In the event, a Participant is found to be doing so (either during or subsequent to the Scheme Period), the entry of such Participant shall be immediately disqualified from the Scheme and cash equivalent of any Benefits awarded to the Participant under the Scheme shall become immediately due to Microsoft. Microsoft shall be entitled to deduct such amounts from any other amounts due to Participant under this Scheme or any other transaction. This does not restrict Microsoft and its Affiliates to initiate further legal actions, against the Participant, using other legal remedies available to them under applicable laws.
5. Microsoft reserves the right to demand return of the Benefits or adjust the amount of such Benefits given by Microsoft to Participant under the Scheme from any moneys owed to Microsoft by such Participant in case Eligible Product obtained during the Scheme Period are returned to Microsoft and/ or Microsoft does not receive the fees for such Eligible Products.
6. Benefits shall neither be transferable nor exchangeable for cash or otherwise. Mere participation in the Scheme shall not entitle a Participant to the Benefits. No other person or agent can claim the Benefits on behalf of the Participant.
7. Taxes, insurance, incidental costs on the Benefits shall be fully borne by the selected Participants.
8. Subject to any applicable law (a) All warranties of any kind whatsoever, whether express or implied, are hereby expressly disclaimed by Microsoft including, but not limited to, meeting of the Participant's requirements or aspirations, timeliness, security, the results or reliability of any scheme, or the delivery, quality, quantity, merchantability, fitness for use or non-infringement in respect of any goods, services, benefits or awards acquired or obtained through the Scheme or any transactions effected through the Scheme; (b) The Participant expressly agrees that his/her participation in the Scheme offered by Microsoft is at the Participant's sole risk and is governed by the Terms and Conditions herein; and (c) No advice or information whether by representations, oral, written or pictorial derived from the website or through the Scheme shall be construed to mean the giving of any warranty of any kind by Microsoft.

9. Microsoft also reserves all rights with respect to, withdraw, alter terms and conditions, Benefits, and discontinue Scheme at any stage without any liability whatsoever. Participants are requested to refer to such other terms and conditions, if any, which may be displayed on-line or intimated separately as Microsoft considers fit. However, no obligation is cast on Microsoft to separately intimate each individual Participant with regard to such additional terms and conditions. The decision on the Participants selected by Microsoft shall be final and binding and no correspondence or communication shall be entertained in this regard

10. Governing Law and Dispute Resolution Mechanism:

The Scheme shall be governed by and construed in accordance with the laws of Singapore. Any dispute arising out of or in connection with this Scheme shall be referred to and finally resolved by arbitration in Singapore in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC"), which rules are deemed to be incorporated by reference into this Scheme. The tribunal shall consist of one arbitrator to be appointed by the Chairman of SIAC. The language of the arbitration shall be English. The decision of the arbitrator shall be final, binding and incontestable and may be used as a basis for judgment thereon in India or elsewhere.